



NATIONAL ACTION CHARTER

KINGDOM OF BAHRAIN



هيئة التشريع والإفتاء القانوني
Legislation & Legal Opinion Commission

2013

**Amiri Order No (17) of 2001
on the ratification of the National Action Charter**

We, Hamad bin Isa Al Khalifa, Amir of State of Bahrain.

Having reviewed the Amiri Order No. (36) and (43) on constituting the Supreme National Committee to draft the National Action Charter,

And reviewed the draft of National Action Charter,

And Amiri Order No. (8) of 2001 with respect to the referendum on the draft of National Action Charter,

And resolution of the Minister of Justice and Islamic Affairs No.(6) of 2001 with respect to declaration of referendum result on the draft of National Action Charter,

And upon our certainty of the peoples acceptance and support to the National Action Charter, demonstrated by the outcome of the referendum,

And our ratification of the will of the Bahrain people to accept the draft of National Action Charter, which confirms their desire to have a better and a more prosperous future, to broaden the horizons of Bahrain for a future desired by us to be pompous and more beautiful for us and the generations to come,

Hereby order the following:

Article 1

We rectify the National Action Charter attached hereto, which was approved by our loyal people on the referendum dated 14 and 15 of February 2001,

Article 2

This order shall be published in the Official Gazette and shall come into effect from the date of its publication.

Signed: Hamad bin Isa Al Khalifa
Amir of the state of Bahrain.

Issued at Rifa'a Palace
On: 22 Thual-Qidah 1421 Hijra,
Corresponding to: 16 February 2001 A.D

Preamble

The sublime address of H.H the Amir Shaikh Hamad bin Isa Al Khalifa

The sublime address of H.H the Amir Shaikh Hamad bin Isa Al Khalifa, at the audience, rendered to the head and members of the Supreme National Committee assigned to draft the national charter, who submitted to H.H, the draft of the national action charter of the state of Bahrain, at Riffa, on Saturday, 7th Ramadan 1421 h, 23rd December 2000.

In the Name of God, Most Gracious, Most Merciful

Dear brothers and sisters,

May peace and God's blessings be upon you.

Today is the dearest day in the history of Bahrain and a glorious moment in our dignified and honoured path. We confidently can say that your accomplishing of the national charter draft, represents an advanced step in the course of the modernizing the political structure of the state including the systems and institutions, in such a way that meet the aspiration of the progressing of the people of Bahrain towards further civilized progress and rising.

It is our pride to achieve this national unanimity in the form of the charter draft after several gatherings of useful dialogue with various sectors of our civilized community

and its representatives. Accordingly you had gathered within the context of this national committee and from various positions, thus enriching the common visions with constructive views and free exchange of opinion in free Bahrain, to strengthen the principles of human coexistence and civilized dialogue which embodied, and over ages, the democratic feature and practices that are formulated today by the charter. You have in fact demonstrated your ability to process this pioneering mission in the history of the nation and proved your competence to shoulder the task for the interest of all citizens.

These are only the first step that precedes a number of dialogue and forums within our national course, fortunately coinciding with last ten days of Ramadan, a document which shall be remembered by next generations as Ramadan document.

Dear brothers and sisters

With every confidence and pride we receive from you the draft of the charter, the allegiance document, as you wished, and it will be the subject of our recognition and consideration and a responsibility that we care for as we, pledged since the beginning and in light of our great confidence in the awareness of this dear citizens.

This will be submitted to a general public referendum according to the procedures in this regard, in order receive the opinions and views of the people. Once we are satisfied that there is general consensus about this draft, we shall endorse it as a basis for our national path, upon which we shall be guided in processing the national action and complement the modernizing of the state institutions and its

constitutional power, while implement in each stage those parts deemed to be in line with the aspirations of the citizens,

Dear brothers and sisters

We shall remain hand in hand and united over the course of this process and I hereby stretch my hand to every single Bahraini, men and women, as it showed the pledge of

Allegiance and it will show a new formula of allegiance. The new formula and the national modernization shall be the features of our best days to come.

May peace and God's blessings be upon you.

Bahrain's History: Civilization and Contemporary Awakening

Since the dawn of history, Bahrain has had its name carved in bold letters in the annals of civilizations. Geographically, the name "Bahrain" might have sometimes broader, sometimes narrower definition. In any case, however, it has always been here, at this archipelago, the heart of the Gulf region, where all civilizations conjured. Dilmun was the meeting place of the Old World that extended from Sumer in Mesopotamia, to Majan in Oman on to the Sind civilization. It established a name for Bahrain as a center of free trade and a vital port of call for the entire Old World for centuries, a fact that contributed to the prosperity of Bahrain over the ages. Even before Islam, Bahrain had been known as a land of diversity in terms of ideologies and beliefs, a rare case in those times by any measurement. In such a climate of spiritual and intellectual tolerance, culture flourished, religions coexisted and the poets of Bahrain contributed monumental works to Arabic poetry on human thought and being.

In fact, they heralded a new era in which Arabs would play a historic role. Bahrain was one of the lands that welcomed the call of Islam at an early date and willingly converted to Islam. Furthermore, Bahrain was an early, staunch supporter of Islam. It carried its banner across the Gulf down to India. Bahrain's resources substantially contributed to the "Beitulmal" (or Treasury) of Islam's realm. Its men of letters made early contributions to Islamic civilization through their jurisprudence and literary works particularly during the Caliphate period. Such contribution made all the more natural that Islamic value of tolerance, justice and piety have been deeply embedded into the very conscience of the

Bahrain people. The physical geography of Bahrain offered a prolific environment for human activities covering agriculture, trade, and diving. With a very favorable geographic location and abundant resources, Bahrain was always a temptation for invaders as well as those who dreamt of fortune.

However, those invariably met with a Bahrain that was always on the alert to repel any transgressor. The latest great milestone in such a history of steadfastness was the successful struggle launched by Arab rank and file under the able command of Ahmed El Fateh late in 18th century comprising the Zubarah and Bahrain region under the Al Khalifa rule. Following came the call by the entire people of Bahrain to Shaikh Isa bin Ali Al Khalifa to assume the rule of the country as the guarantee against foreign domination. This was the first manifestation of public will in contemporary Bahrain. It has gone into the annals of history as the first oath of allegiance to a young ruler who epitomized his people's dream of a national rule. For the next sixty-five years, this rule proved to be able to ensure the country's security, to maintain the cohesion of the people and their leadership and to maintain its political and economic stability that helped Bahrain successfully steer into modern times.

Despite foreign powers taking an adverse stand toward calls by the people of Bahrain for Shaikh Isa bin Ali Al Khalifa to constitute a Shura or (consultative) Council, the positive response on his part came as a manifestation of a common perception, of both the people and the leadership, of the course national action should take. Shaikh Hamad bin Isa bin Ali Al Khalifa, who succeeded his father as ruler enjoying an oath of allegiance by his people, had realistic

perspective of international conflicts. With his forward looking approach, he opened vistas the country to usher itself into modern times. He introduced a modern education system, an effective administration, modern municipal facilities, and an appropriate legal framework. Thus, the country was able to lay down an agenda for development and transformation following the establishment of oil industry in Bahrain. When Shaikh Salman bin Hamad Al Khalifa took over as ruler in 1942, Bahrain was doing its utmost to come to grips with ramifications of concurrent World War 2, operations in terms of economic difficulties and international and regional upheavals. Nevertheless, Bahrain managed to surmount such difficulties and to continue with its state building development, national unity, people leadership, cohesion and participation agenda despite pressures by foreign powers.

The reign of Shaikh Isa bin Salman Al Khalifa was one of rich growth and political achievements. It goes to his credit that he established the state of Bahrain. He proclaimed Bahrain as an independent state with modern institution thus, putting an end to foreign ambitions and claims. In a survey conducted by a United Nations fact finding commission, the entire people of Bahrain expressed their unequivocal resolved to protect their fatherland as an Arab independent state and renewed their oath of allegiance to Shaikh Isa bin Salman Al Khalifa. In response, Shaikh Isa promulgated the constitution of the state of Bahrain that reflected true constitutional and democratic principles. Under Shaikh Isa bin Salman Al Khalifa, Bahrain gained its full independence as a state that upholds democracy, institutions and rule of law. Shaikh Isa will ever be remembered for his historic milestone decisions on launching real constitutionalism in Bahrain through free and

direct elections to form a national council under the constitution. The unequivocal support expressed by the people of Bahrain to H.H the Amir Shaikh Hamad bin Isa Al Khalifa upon his assumption to leadership, came as a manifestation of the fact that the entire Bahraini people have closed ranks behind his reign from the beginning.

Under H.H the Amir, Bahrain has witnessed a vigorous leap forward to further democracy in response to people's aspiration to a modern state that continues to enjoy security, stability and prosperity, a state where constitutional institutions capable of meeting the aspirations of both leaderships and the peoples and where justice and rule of law reign supreme, be completed. At this historic juncture, the people of Bahrain are resolved to have a shining morrow. They stand for freedom, equality, justice, democracy and participation in governance by all. The state of Bahrain that has gained political independence through a joint struggle by both a wise leadership and a faithful people, have preserved its unity and territorial integrity, including its land and territorial waters that are neither alienable nor a subject of compromise in any way and under any circumstances. This is expressly reflected by article 1 of the constitution of Bahrain.

The state of Bahrain has played an active role at political arenas within Arab, Islamic and international tiers. It has manifested its unwavering belief in its role as one of the constituents of the Gulf Cooperation Council as well as its resolve to closely work with other sisterly member states to further galvanize the GCC system to meet the aspirations of its peoples. Having established modern institutions based on democracy, constitutional institutions and the rule of law since its independence; having fully assumed its full role as

a state both in terms of its international relations as well as its sovereign institutions that are based on justice, equality and care for citizens rights since independence; in view of H.H the Amir's aspirations to further deepen democracy through a more balanced structure that maintains constitutional political participation of both government and people, checks and balances, strengthens the judiciary's mechanics and allows for the creation of a constitution court, an auditor general and an administrative supervisory authority; in view of the royal will to usher the country into the third millennium as a truly modern one that is empowered with a full-fledged political, constitutional frame work conducive to proper responses to local, regional and international developments; and in view of the need to cope with new political, economic and social developments as well as future challenges, building on Bahrain's experience in political and economic realm over the last three decades.

It is hereby resolved that national, political and constitutional constants, including the democratic, constitutional monarchy under which the king serves his people and symbolizes their independent identity and their aspirations to progress, shall be attached to it. It is further resolved that the constitution of the country shall be amended in such a way as to allow making use of other democracies' experiences in broader participation in government and administration, including their putting in place of a bicameral system where the legislature can have the double advantage of learned and experienced citizens in the Shura council on the one hand and the interaction with people's opinion from all schools of thought through a freely, directly elected chamber.

National Charter - Chapter I

Chapter I: Basic principles of the society

No society can be as stable for scores of centuries as successful in building a distinctive civilization as Bahrain unless the same is solidly attached to a set of core values that ensure its cohesion, progress and development and strengthens its entity as a state. With its solemn belief in Islam and Arab identity and true to its deep-rooted traditions, the Bahraini society has been attached to a set of core principles that are congruent with Arab-Islamic values. These core values and principles must be upheld and safeguarded as they are co-opted by the entire society. They have always been and maintained through generations since time immemorial in the interest of both people and the state. Hence, these core values and principles are sacrosanct. Neither a public authority nor a citizen can compromise any of them. These core values and principles can be enumerated as follows:

First - Goals and basis of Government

Government goals are to protect the country, to maintain national unity and to achieve comprehensive, sustainable are protected. Development in political, socioeconomic, cultural and other fields. Justice is the basis of government. Equality, rule of law, liberty, security, peace, education, social solidarity and equal opportunity are all core principles of the society that are ensured by the state. Over the years, those core values solemnly attached to by the Amir, government and people of Bahrain have been the basis of government. They are reinforced by solidarity, cooperation and cohesion between the ruler and the people. Justice is one such principle that has remained an article of faith that is further

ensured with the upholding of values including solidarity and cordiality.

Second - Protection of individual freedoms and equality

Individual freedoms quality, justice and equal opportunity are core principles of the society. The State shoulders the responsibility of ensuring them for all citizens on an equal footing. This is based on a broader principle, namely, that people are equal insofar as human dignity is concerned, a principle that has been consecrated by Islam since fourteen centuries. Addressing believers during his 'Hajjatul Wada'a (or the last pilgrimage). Prophet Mohammed laid emphasis on this principle by saying that people are as equal as dents of a comb are, that no Arab claims a preference over an 'Ajami' (or a non-Arab) and no white man can claim preference over a black man except on the basis of righteousness and good deeds. A natural flow of this great principle of Islam and indeed humanity is a set of related principles, namely:

- 1) All citizens are equal before the law in terms of rights and duties, without distinction of race, origin, language, religion or belief. This has been reiterated by H.H. the Amir in his first address to the people in the wake of his assumption to the power.
- 2) Personal liberty is ensured under the law. Unless according to procedure established by the law and under judicial supervision, no person shall be arrested, detained in custody, inspected or put under house arrest, restricted residence or movement.
- 3) No person shall in any way be subjected to any kind of physical or moral torture, inhumane, humiliating or indignant treatment. Any confession or utterance

obtained under torture, threatening or persuasion shall be null and void. In particular, an accused shall not be subjected to any physical or moral harm. Law ensures punishment of those who commit an offense of torture, a physically or psychologically harmful act.

- 4) An offense and punishment for the same shall be established only by law. No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence.
- 5) Punishment is individual. An accused person remains innocent until convicted in a fair trial in which all guarantees are provided with a view to ensuring to an accused person the right to defense throughout investigation and prosecution under law. A person accused of a felony shall have the right to be defended by a lawyer of his choice. The right to litigation is ensured under law.
- 6) Places of residence are inviolable. Unless authorized by its legal occupants, no place of residence shall be entered or inspected. However, in case such an entry or inspection is deemed extremely necessary by way of exception, such an entry or inspection may be carried out in cases specified by law and under judicial supervision.
- 7) Personal correspondence shall enjoy inviolability and secrecy. Mail, cable, telephone, electronic and other correspondence shall be protected. Save in cases where law deems it necessary, and subject to judicial supervision, such correspondence shall not be censored or inspected.

Third - Freedom of belief

The state ensures freedom of belief. Freedom of conscience shall be absolute. The state maintains inviolability of houses of worship and guarantees freedom to practice religious rites according to considered custom of the land.

Fourth - Freedom of expression and publishing

Every citizen shall have the right to express himself orally, in writing or in any other way of expression of personal opinion or creativity. Under this law, freedom of scientific research, publishing, press and printing are ensured within the scope specified by law.

Fifth - Civil Society Activities

With a view to enabling the society to make use of all civil capabilities and activities, the state ensures the freedom to form non-governmental, scientific, cultural, professional associations and unions at a national level for legitimate purposes through peaceful means under terms and conditions as may be prescribed by law. No one shall be forced to join an association or union or to remain member thereof.

Sixth - Family as the basis of society

Based on the firm belief that family is the nucleus of the society and that good family is key to a cohesive society as well as key to upholding religious and ethical values and national sense of belonging, the state protects the legal form of family as well as maternity and childhood, provides care to children, protects them from exploitation and moral,

physical and spiritual negligence. In particular, the state pays special attention to physical, moral and mental development of youth. In this respect, the state ensures necessary social security for citizens in cases of aging, invalidity, orphanage, widowing and unemployment. The state also secures social insurance services for citizens in such cases. The state secures health care and puts in place health policies that are conducive to achieving the objective of health for all. The state ensures the solidarity of the society in sharing burdens arising from natural calamities and disasters, compensation of those who may be injured due to war or on account of military duty. The state endeavors to support women's rights and the enactment of laws on protection of family and family members.

Seventh - Employment as both a duty and a right

Employment is a duty of every citizen. This is in the interest of individual dignity and public good. Subject to public law and order, every citizen has the right to practice a profession or to carry on any occupation, trade or business. Taking into account that save in a case prescribed by law for a national necessity and against a fair consideration, no one shall be forced into a specific job, the State ensures employment opportunities under fair terms and conditions for citizens within national economic development programs. Subject to rules of social justice, the law organizes employer-employee relations on an economic basis.

Eighth - Education, culture and science:

The state promotes science, literature and arts. It encourages scientific research and ensures education and cultural services for citizens. Education shall be compulsory and free

in initial stages as may be prescribed by law. Also law prescribed literacy plans. Law organizes religious education and pays attention to civics, building citizens personalities with a solid sense of belonging to national unity and Arab nationalism through all stages and disciplines of education. Universities are beacons of intellectual radiance and scientific advances a fact that necessitates ensuring academic freedom, the practice thereof and maximizing their access to knowledge. The state encourages private education and the establishment of private universities and institutes. In the same vein, it shall support science and technology research institutions, a better linkage between education system and labour market with a view to ensuring availability of qualified labour force that meet current and future requirements.

National Charter - Chapter II

Chapter II: Government System

For centuries, ever since the Al-Khalifa ruling family assumed rule of the country, Bahraini society has been distinctive as to the basis of relationship between the ruler and the people. This has been one of cohesion, direct contact and mutual understanding in the interest of both individuals and the country. True to this tradition, the people of Bahrain now have the resolve that salient features of the government system in the country should be as follows.

First - The Amir

Government system of Bahrain shall be a constitutional monarchy as may be prescribed by the constitution and the Amiri Decree on succession. The Amir is the head of state. His person is inviolable. He is the Supreme Commander of

Armed Forces, the symbol of national stability and the fulcrum of government system of the state of Bahrain. The Amir exercises his powers through ministers who are accountable to him. He appoints to, and relieves from, premiership and ministerial posts within his powers as prescribed by the constitution.

Second - Constitutional Form of the State

In view of the stability enjoyed, progress achieved, strides made and challenges surmounted by Bahrain by the Grace of God Almighty, and in view of the fact that it has assumed its full-fledged role as a state both in terms of international relations and sovereign institutions based on equality of all citizens, common good and national unity, it is deemed proper that Bahrain should join democratic constitutional monarchies with a view to meeting peoples aspirations to further progress.

Third- Islamic Shari'a and Legislation

Islam is the religion of the state. Islamic Shari'a is the principal source of legislation.

Fourth - People as the source of all powers

Government system of the state of Bahrain is a democracy where all powers vest with the people. Sovereignty is exercised as prescribed by the constitution.

Fifth - Separation of Powers

With a view to consecrating a stable democracy, the government system is based on checks and balances, i.e., the

separation of, and cooperation among, the three powers namely, the legislature, the executive and the judiciary as set forth in the constitution. H.H the Amir is at the helm of the three powers.

Sixth - Rule of Law and Independence of the Judiciary

Government in the state of Bahrain is based on the rule of law. The independence and immunity of the judiciary are two key guarantees for protecting rights and freedom. The state shall complete the judicial system as prescribed in the constitution. It shall specify the judicial authority vested with the jurisdiction over disputes as to whether a given law or executive regulations are consistent with the constitution. The state shall specify a judicial authority vested with the jurisdiction of the Attorney General.

Seventh - People's right to participation in Public Affairs

Citizens, men and women alike, have the right to participate in public affairs and political rights including suffrage and the right to contest as prescribed by law.

National Charter - Chapter III **Chapter III: Economic Fundamentals of the Society**

The state of Bahrain has made great strides in the field of economic development with a view to raising per capita income. This has been achieved despite high population density and scarce natural resources including land and water. It is due to wise policies put in place by the leadership and government to ensure a streamlined effective use of available resources that Bahrain has achieved such an outcome. This has helped Bahrain achieve a higher level of

human development and economic freedom. However, policies that would ensure a stable economic growth rate that offsets high population growth rate must be put in place. This charter reiterates that the state of Bahrain is solemnly attached to the following economic fundamentals:

First - The Principle of Free Economy

The economic system of the state of Bahrain is based on individual initiative, freedom of capital movement in terms of investment and transfer. It lays emphasis on the role of private sector in resource development as well as in activating the economy. Over the year, this economic system has provided for a tangible economic and investment activity and resulted in substantial capital inflows for investment. An open-door policy must be accompanied by a new public administration mindset, one that is oriented to streamlined procedure, transparency, elimination of jurisdictional overlapping, improved services and updated economic legislation within a framework of integrity and equal opportunity. In order for auditing and administrative supervision to be effective and for bureaucracy to become more transparent, there is a need to institute an Auditor General and an Administrative Supervisory Authority.

Second - Private Ownership

Private ownership is inviolable. Subject to law, every person has the right to dispose of his property. Subject to a fair compensation, a private property shall be expropriated only for public good purposes within the scope set forth in and as prescribed by law.

Third - Economic Justice and Balanced contracts

Private ownership, capital and work are individual rights of a social nature. Law organizes such rights and the practice thereof on an economic and socially equitable basis. Law determines rules that ensure a balanced relationship among elements of production as well as balanced contractual relationship.

Fourth - Diversification of Economic Activity and Sources of National Income

The state of Bahrain has been a pioneer of diversification of economic activity and sources of national income among Gulf Arab countries. The idea was to avoid dependence on a single main source of income, to be able to ensure a reasonable standard of living for future generations and to avoid vulnerability to external economic fluctuation. As a result, Bahrain has grown into an important regional financial center and an internationally acclaimed tourist attracting point. Through support made available to manufacturing, high value added, informatics and services industries, it has been possible to develop a platform for economic development and to offer employment opportunities to citizens.

Fifth - Environment and Wildlife

Due to increasing pressure on scarce natural resources, the state of Bahrain has been bent upon rationalizing utilization of natural resources, environment friendly development and public health. In so doing, it takes into account worldwide trends in preventing, and addressing, major environmental problems. This is being done through a national environment

protection strategy, taking appropriate legal measures and procedures with a view to reducing pollution from different sources. Other incentives being put in place include: offering facilities to manufacturers to shift to clean production and requiring that Environment Impact Assessment (EIA) be made before a project is launched. Moreover, the State puts in place measure to protect wildlife, particularly different habitats of fauna and flora of which Bahrain is famous. This is being done through developing appropriated plans for land use and coastal zone management and delimitation of a system of sanctuaries such as the Al-Areen and Hawar sanctuaries, the latter along with surrounding waters being of a worldwide fame for its rare species of animals and birds.

Sixth - Public property and natural resources

Public property is inviolable. It is incumbent upon every citizen to protect the same while public authorities are under duty to take all necessary measures to maintain the same. All natural resources are a property of the State that shall maintain, and put in place best ways and means to utilise, the same.

Seventh - Labour and training

The State of Bahrain maintains that the greatest assets in it are its own citizens who have proved themselves in educational and cultural attainment, and distinctively so. Therefore, providing citizens with support through continuous training and retraining would ensure infusing fresh blood and experience into labour market, with ensuring greater employment opportunities for citizens.

National Charter - Chapter IV

Chapter IV: National Security

National security is the safeguard of the country, its territorial integrity and its socioeconomic and political gains. It supports comprehensive development efforts particularly in changing regional and international circumstances. The fulcrum of national security is to strengthen Bahrain Defence Force (BDF) with a view to enabling the same to properly discharging its duty. Also it calls for providing necessary equipment and other related requirements for security forces to ensure that they perform their duty in maintaining security and public law and order throughout the country. It also makes it necessary to strengthen the National Guards as a line of support for both BDF and Security Forces. The entirety of these efforts would support development efforts and maintain economic achievements, protect every inch of land, sea and air of Bahrain. To serve in national security system is a duty and a source of pride for every citizen. Hence comes the importance of the BDF.

It is a symbol of national unity, a support to our brethren and nation so as to ensure security and stability, not only for our fatherland but also for our beloved Gulf region and, indeed, the Arab World. Needless to say that, true to traditions of Bahrain, BDF has been, indeed, a bastion to defend our country's culture, ethics and well-being. It has been, since day one, a message of goodwill and peace to the entire mankind, an honest reflection of the values we all stand for. The fact that H.H the Amir, the Supreme Commander of BDF, is its first soldier and founder since 'the first light' is a source of full-fledged faith therein. In a world where science and technology advances are revolutionary, sources of threat, and harm to security are quite enormous; it becomes

all the more necessary to secure advanced weaponry and security and defence systems. Of no less importance is the human element. As those systems should be run by men, policies related to training of qualified personnel and care for the welfare of BDF personnel are sine qua non for ensuring Bahrain's security.

In this respect, enhancing the capabilities and operational, logistics and technical preparedness of BDF, through training and organization of the best quality, must be accorded the highest priority. The BDF's ability to fulfill its mandate cannot be considered in isolation. It is organically linked to a clear defence policy that is supported by detailed programs designed to help achieve relevant objectives. This calls for a regular review of our strategic vision, adaptation to new technologies and definition of perceived sources of threat.

National Charter - Chapter V

Chapter V: Democratic Life

Bahrain has experienced direct democracy ever since Al-Khalifa assumed the rule of the country. Constant contact and consultation between the ruler and people, free and full access by the people to the ruler constant of the relationship between the government and the people in Bahrain has helped molding all government policies in a way that is consistent with the wishes and interests of the people. In fact, the government remains to be fully receptive to the feelings of the people and, hence, has worked for the sole purpose of serving public good. Against this background, democracy has been reflected in practice through the constitution and the elected National Council and further enhanced by the addition of a Shura (consultative) council

that has proved to be a forum of serious discussion, examination and advice over an entire matrix of public issues of concern to the country. Moreover, the Shura council has proved to be capable of being sufficiently receptive to new developments. Its cooperation with the government in public interest has been exemplary.

However, democracy is dynamic by nature, the wider its horizon, the greater the practice thereof. In this respect, it is worth mentioning that many a deep-rooted democracies are bicameral ones, in which cases one chamber represented the whole gamut of ideas and views on current affairs as reflected by representatives of people from all brackets whereas the other chamber would serve as a forum of experts and expertise. The experience of those democracies has proved that bi-cameral system is of great import in political terms. In order to broaden people's participation in public affairs, in line with principle of Shura, a basic Islamic principle of the government system of Bahrain, and in true belief of the right of the entire people to practice their constitutional political rights and with a view to being congruent with deep-rooted democracies, it is in the interest of the state of Bahrain to adopt a bicameral system whereby the legislature will consist of two chambers, namely one that is constituted through free, direct elections whose mandate will be to enact laws, and a second one that would have people with experience and expertise who would give advice as necessary. This bicameral structure of the legislature, a balanced one indeed, would offer many interrelated advantages, including people's participation in legislation related affairs and interaction among all ideas and orientations within a single legislative council. This proposed structure of the legislative council would require an amendment of the constitution. It would achieve the dual

benefit of making use of wisdom and expertise on the one hand and a variety of views of Bahraini electorate. Such an amendment would certainly allow for a wider horizon for democracy. This would support efforts being made for development, stability and prosperity. It is a democracy that supports social peace and national unity.

National Charter - Chapter VI

Chapter VI: Gulf Relations

The government and people of Bahrain firmly believe that the peoples of GCC countries share the same goals, interests and destiny. They share blood relationships that are further galvanized by common history, culture and custom. These have been sufficient grounds for Bahrain to be a founding member of GCC along with other sisterly Gulf Arab countries.

A serious cooperation among GCC countries is of utmost importance to the highest interests of all sisterly member-states, including maximum development for the countries and peoples of GCC. In this respect, GCC has proved to be capable of defending the freedom and sovereignty of its member-states and to serve as a shield to protect their independence. Therefore, the state of Bahrain shall always work, with all its force, to strengthen GCC and to support the just causes of its sisterly member-states. The state of Bahrain considers this as one of its policy core constants that are organically related to Bahrain belief that its security and prosperity are part and parcel of those of other sisterly GCC member-states.

The state of Bahrain shall work closely with its sisterly GCC member-states for greater coordination, rapprochement and

integration within GCC particularly in those areas that still require a more effective coordination such as economic integration, defence cooperation, information as well as people's participation in GCC organizations.

National Charter - Chapter VII

Chapter VII: Foreign Relations

The state of Bahrain is proud of its Arab identity, its people are part of the Arab nation and its territory is part and parcel of the Arab world. This sense of belonging is reflected in common language, religion and culture as in common hopes, sufferings and history. Therefore, the state of Bahrain shall continue to effectively and closely work with other sisterly member-states of the league of Arab states. It shall continue to pursue its efforts, in close cooperation with other Arab countries, to further enhance the role of the Arab League in order to maintain the same as a political and legal institution that embodies Arab unity and furthers joint Arab action and common will. The state of Bahrain reiterates its support of all forms of inter-Arab economic cooperation.

The manifestations of this considered policy of the state of Bahrain include the following: Bahrain offers unqualified support to Arab just causes. It is committed to stand by Arab brethren on their critical causes. In this respect, the state of Bahrain supports and stands for, Palestinian legitimate rights, particularly the right of the Palestinian people to have their independent state with Al-Quds Al-Sharif as its capital. It reiterates the need to secure the restoration, and respect, of all Arab rights under international legal rights. Within the Organization of Islamic Conference (OIC) and true to its firm belief in Islamic values of right, good, justice and peace, the state of Bahrain maintains the cooperation among

OIC members is of utmost importance to support national independence and self-determination issues and to reach a higher level of economic development in member states.

The state of Bahrain hopes that OIC will be more effective. In the realm of international political relations, the state of Bahrain, maintains that world and regional peace is a core, strategic goal that justifies the greatest effort. Accordingly, it reiterates that it is solemnly attached to the core principles of peaceful settlement of all international disputes, prohibition of use of force at the expense of the territorial integrity or political independence of any country. The state of Bahrain encourages and supports all international efforts for peaceful settlement of regional disputes. It is noted that since it joined the United Nations, Bahrain has contributed to all UN activities, resolutions, events, agreements and conventions, particularly those related to human rights, civil, political and socioeconomic rights, women's rights as well as the work of UN specialized agencies. In the realm of international economic and trade relations, the considered policy of the state of Bahrain stands for free international trade, movement of investment, capital and labour while taking into account national interests of individual countries. In so believing, the state of Bahrain maintains that each country enjoys the better title over its own natural resources that cannot be disposed of under any external pressure or dictation.

Out look

In view of the consensus of both the government and people as to the content of this charter; In view of the fact that it serves as a future national action instrument, and in view of the fact that it requires certain amendments of the

conditions, it is deemed necessary to decide on the following:

First - The Name of the State of Bahrain

An amendment of the constitution shall determine the official name of the state of Bahrain as may be adopted by the Amir and the people of Bahrain.

Second – The Legislature

The provisions of part 4 Chapter 2 of the Constitution on the legislature shall be amended to be consistent with democratic and constitutional developments worldwide in so far as the introduction of bicameral system is concerned. This would mean that one chamber is constituted through free, direct elections whose mandate will be to enact laws while a second one would have people with experience and expertise who would give advice as necessary. Laws shall be enacted as prescribed in detail by the constitution and in congruence with constitutional norms and traditions followed in deep – rooted democracies. The people's consensus on this charter is a true reflection of their will to have a more stable, prosperous future under the leadership of H.H Shaikh Hamad bin Isa Al Khalifa, Amir of the State of Bahrain. We pray to God Almighty to help us be among "those who faith fully observe their trusts and their covenants" as described in the Holy Quran. In God Almighty "we put our trust " Verily, God Almighty " is the best to protect and the best to help".